



SPONSOR: Sen. Sokola & Rep. Romer

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 163

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO PUBLIC OFFICERS AND
EMPLOYEES AND FINANCIAL DISCLOSURES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 5813, Subchapter II, Chapter 58, Title 29 of the Delaware Code by making deletions as
2 shown by strike through and insertions as shown by underline as follows:

3 § 5813. Report disclosing financial information.

4 (a) Every public officer as defined in § 5812 of this title shall electronically file a report disclosing financial
5 interests, as hereinafter provided. Each electronic report shall be submitted and electronically verified through the database
6 maintained by the Commission for such records and shall include at least the following information:

7 (1) The name and position of the public officer; and

8 (2) The name, instrument and nature of ownership, and any position of management held by, or constructively
9 controlled by, the public officer in any business enterprise in which legal or equitable ownership is in excess of \$5,000 fair
10 market value or from which income of more than \$5,000 was either derived during the preceding calendar year or might
11 reasonably be expected to be derived during the current calendar year. Time or demand deposits in a financial institution, or
12 any debt instrument having a fixed yield shall not be listed unless convertible to an equity instrument; and

13 (3) The name, address and type of practice, without reference to the identity of any individual clients served, of
14 any professional organization in which the public officer is the sole practitioner, officer, director or partner, or serves in any
15 advisory capacity, or which is constructively controlled by the public officer, from which income of more than \$5,000 was
16 either derived during the preceding year or might reasonably be expected to be derived during the current calendar year;
17 provided, however, that any such organization construed as a business enterprise and reported pursuant to paragraph (a)(2)
18 of this section need not be reported under this subsection; and

19 (4) The source of each of the following items received during the preceding calendar year, or reasonably expected
20 to be received during the current calendar year:

21 a. Any income derived for services rendered exceeding \$1,000 from a single source, unless such income is
22 otherwise identified pursuant to paragraph (a)(2) or (3) of this section; or

- 23 b. Any capital gain exceeding \$1,000 from a single source other than from the sale of a residence occupied by the
24 public officer; or
- 25 c. Any reimbursement for expenditures exceeding \$1,000 from a single source; or
- 26 d. Any honoraria; or
- 27 e. Any gift with a value in excess of \$250 received from any person, identifying also in each case the amount of
28 each such gift. For purposes of compliance with this gift reporting obligation, the recipient may rely in good faith upon the
29 representation of the source of the gift as to the gift's value; and
- 30 (5) Each creditor to whom the public officer was indebted for a period of 90 consecutive days or more during the
31 preceding calendar year in an aggregate amount in excess of \$1,000.
- 32 (b) Each report required by this section shall contain a certification by the public officer that the officer has read
33 the report, and that to the best of the officer's knowledge and belief it is true, correct and complete, and that the officer has
34 not and will not transfer any assets, interests or property for the purpose of concealing it from disclosure while retaining an
35 equitable interest therein.
- 36 (c) Not later than 14 days after becoming a public officer as defined in § 5812 of this title, the report required by
37 this subchapter shall be filed. Thereafter, the report shall be filed on or before the third Wednesday of March ~~15~~ of each
38 year.
- 39 (d) Each report required by this section shall be filed with the Commission.

SYNOPSIS

Presently, Title 29 of the Delaware Code § 5813(c) requires public officers to file financial disclosure forms on March 15 of each year. However, in certain years, for example, 2025, the statute calls for financial disclosures to be filed over the weekend, because March 15, 2025 fell on a Saturday. On weekends, the assistance of the Public Integrity Commission may not be available. This Act changes the deadline for filing financial disclosures to "on or before the third Wednesday of March" which will be a weekday and a regular business day. This Act also clarifies the statute by expressly stating that the financial disclosures may be filed "on or before" the new deadline, in keeping with the current practice of the Public Integrity Commission.

Author: Senator Sokola